

MAE VS. WILLOW SPRINGS CA, LLC, ET AL.

Case Number: 24CV-0205188

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued February 27, 2025, to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement as required by Rule of Court 3.1380(c). In light of the party's stipulation to continue trial, mandatory settlement conference, and pre-trial dates filed on March 5, 2025, the Order to Show Cause is **DISCHARGED**. **No appearance is necessary on today's calendar.**

MASSETT VS. AMERICAN AUTOMOBILE ASSOCIATION, ET AL.

Case Number: 24CV-0206073

Tentative Ruling on Motion for Reconsideration: Plaintiff Stacey Massett moves for reconsideration of one or more rulings made on March 3, 2025 by the Honorable Benjamin L. Hanna. CCP § 1008(a) requires the Application be made to the same judge who ruled on the underlying motion. Judge Hanna is not hearing the calendar today. The Court notes that a review hearing is set in this matter on May 19, 2025. This matter is continued to **Monday, May 19, 2025 at 8:30 a.m. in Department 63** for hearing on the motion. **No appearance is necessary on today's calendar.**

SEEKINS VS. VICTORY POWDER COATING, LLC

Case Number: 24CV-0204815

Tentative Ruling on Motion for Summary Adjudication: Defendant Victory Powder Coating, LLC moves for summary adjudication on the Third Amended Complaint filed by Plaintiff Brian Seekins. Plaintiff opposed the motion and raised a notice issue.

If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.

CRC 3.1350(b)

The Notice of Motion here reads that Defendant "will move the Court for Summary Adjudication of Plaintiff's claims set forth in his Third Amended Complaint." The specific causes of action and issues are not specifically stated in the Notice of Motion. The Notice of Motion is not compliant with CRC 3.1350(b).

The Motion for Summary Adjudication is **DENIED** without prejudice for insufficient notice and because it does not comply with CRC 3.1350(b). Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

9:00 a.m. – Review Hearings

ARELLANO VS. USA WASTE OF CALIFORNIA, INC.

Case Number: 22CV-0200801

This matter is on calendar for review regarding status of removal to Federal Court. The matter was removed on December 9, 2022. As it does not appear that this matter will be remanded, this matter is removed from the Court's control due to the removal to Federal Court. Any future hearing dates are vacated and no further appearances will be required. **No appearance is necessary on today's calendar.**

BONSEY VS. DIGNITY HEALTH, ET AL.

Case Number: 24CV-0205081

This matter is on calendar for review regarding status of service, and if appropriate, trial setting. The Court notes that Plaintiff has still not filed a Proof of Service of Summons as to Defendant Ben Lee. M.D. The Court notes that the Complaint was filed on May 23, 2024. **An appearance is necessary on today's calendar. Absent good cause being presented, the Court intends to issue an Order to Show Cause Re: Monetary Sanctions to Plaintiff and Counsel for failure to timely serve the Complaint per CRC 3.110(b).**

CHRISTENSEN VS. BROOKSHIRE, ET AL.

Case Number: 24CV-0204975

This matter is on calendar for review regarding status of the case and trial setting. The Court notes that the matter is at issue. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than November 18, 2025. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

INTERSIMONE VS. PERKINS

Case Number: 24CVG-00531

This matter is on calendar for review regarding status of dismissal. On April 1, 2025, Plaintiff's counsel informed the Court that she was seeking written permission from her client to dismiss the matter. The matter has not been dismissed. **An appearance is necessary on today's calendar. Absent good cause being presented, the Court intends to issue an Order to Show Cause Re: Dismissal for failure to timely serve the Complaint per CRC 3.110(b).**

JEWETT, ET AL. VS. CALIFORNIA DEPARTMENT OF HOUSING AND COMMUNITY DEVELOPMENT, ET AL.

Case Number: 24CV-0206422

This matter is on calendar for status. An Order to Show Cause Re: Dismissal was on this morning's Law & Motion calendar and the hearing was continued to June 2, 2025. The review hearing is continued to **Monday, June 2, 2025 at 9:00 a.m. in Department 63.** **No appearance is necessary on today's calendar.**

LVNV FUNDING, LLC VS. MEYER, JR

Case Number: 23CVG-01141

This matter is on calendar for review regarding status of default. An Amended Proof of Service of Summons was filed on January 17, 2025 reflecting personal service on November 25, 2023. Plaintiff has not submitted a Request for Entry of Default since filing the Amended Proof of Service. **An appearance is necessary on today's calendar. Absent good cause being presented, the Court intends to issue an Order to Show Cause Re: Monetary Sanctions to Plaintiff and Counsel for failure to timely enter default and obtain a default judgment per CRC 3.740(f).**

PIERCY, ET AL. VS. MCINTOSH, ET AL.

Case Number: 24CV-0204617

This matter is on calendar for review regarding status of service. Proof of Service of Summons was filed on April 4, 2025. The time for filing a responsive pleading has not passed. The matter is continued to **Monday, June 2, 2025 at 9:00 a.m. in Department 63** for review regarding status of responsive pleading or default. The Court expects that Plaintiff will get the matter at issue prior to the next hearing. **No appearance is necessary on today's calendar.**